

Witness Statement of Nadia Zahmoul in Support of N244 Application — Transcript Production + CPR 35 Expert Evidence

*AC-2025-LON-004293 — Administrative Court — Drafted 24 April 2026 —
Not Filed — Source Material for EX107 Transcript Request to HHJ Cobb*

Case references

**AC-2025-LON-004293 | BV20D01752 | BL-2024-001217 | EWFC 79 | EWFC
114
CCR-6501-26-0100-000 | CRN 01/7340002/26**

Nadia Zahmoul

Litigant in Person

24 April 2026

Veritas Numquam Perit

IN THE HIGH COURT OF JUSTICE — KING'S BENCH DIVISION — ADMINISTRATIVE COURT

Claim No: AC-2025-LON-004293

BETWEEN:

NADIA ZAHMOUL — Claimant (Litigant in Person)

— and —

(1) THE SECRETARY OF STATE FOR JUSTICE

(2) HIS MAJESTY'S COURTS AND TRIBUNALS SERVICE — Defendants

WITNESS STATEMENT OF NADIA ZAHMOUL

(Claimant, Litigant in Person)

In Support of N244 Application dated 24 April 2026

Dated: 24 April 2026

STATEMENT OF TRUTH AND CAPACITY

1. I, Nadia Zahmoul, of an address withheld, am the Claimant in these proceedings. I am a Litigant in Person. I make this statement from my own knowledge and from documents in my possession, to which I refer. Where I refer to matters not within my direct knowledge, I identify the source. The contents of this statement are true.
2. I am an autistic adult (NHS diagnosis, Central London Adult Autism Service (CLAAS), July 2025). I have diagnosed Post-Traumatic Stress Disorder (Professor Gerald Libby FRCPsych, continuously treated since 2011). I have Sjögren's Syndrome, a chronic autoimmune condition which can cause acute flares lasting several days, during which my cognitive and physical function is significantly reduced. My current clinical position is recorded in the letter of Dr Omar Shoukry, NHS Speciality Doctor in General Adult Psychiatry, South Kensington & Chelsea Community Mental Health Team, dated 17 April 2026, which is before this Court and is exhibited to this statement at Exhibit NZ-1.

A. THESE PROCEEDINGS ARE LIVE

3. I make this application on the express basis that these proceedings, AC-2025-LON-004293, are live. They are not concluded. They have not been finally disposed of. Any

suggestion to the contrary by the Defendants or by any third party is procedurally incorrect as a matter of law.

4. The position is as follows:

(a) Permission was refused on the papers and the Court issued a totally-without-merit certification dated 11 March 2026 (Collins Rice J).

(b) On 12 March 2026 I sealed and filed on CE-File an application under CPR 3.1(7) seeking variation of that decision. That application remains undetermined.

(c) On 14 April 2026 I sealed and filed on CE-File an expedition application (N244 sealed, reference 2147191775698027684) seeking prompt determination of the CPR 3.1(7) application. That application is also undetermined. It is confirmed on the court file: Mr Casey Liddle, Administrative Court Office Case Progression Officer, has confirmed in writing that it is before a judge for consideration.

(d) The window for oral renewal of the permission decision under CPR 52.8 closed on 23 April 2026. That does not dispose of the proceedings. It closes one procedural route within them. The outstanding CPR 3.1(7) application is a separate and continuing route. Where such an application is properly filed, the Court retains jurisdiction to vary its decision: *Tibbles v SIG plc* [2012] EWCA Civ 518.

5. The correct characterisation in law is that these proceedings remain before the Court with two applications outstanding and unresolved. It is on that footing that the present application is made.

B. THE CENTRAL EVIDENTIAL PILLAR

6. The central evidential pillar of these proceedings, and of the present application, is the disparity between the oral record of the final hearing in the underlying Family Division proceedings BV20D01752 (19–28 February 2024, Mr Justice MacDonald) and the sealed written judgments that followed.

7. On at least twenty-two occasions during the ten sitting days of the final hearing, my autism and/or my Post-Traumatic Stress Disorder were referred to in the hearing — by counsel, by witnesses, and by the Judge himself. Line 2897 of the attendance notes records the Judge asking in open court "*Did you say Nadia had PTSD?*" He therefore engaged, personally and directly, with my disabilities during the hearing.

8. The sealed judgment *DH v RH (No 3)* [2024] EWFC 79 (handed down 18 April 2024) contains 111 paragraphs. It contains no reference to my autism. It contains no reference to my Post-Traumatic Stress Disorder. It contains no reference to any participation measures or reasonable adjustments. The references in the judgment number zero.

9. The subsequent costs judgment *DH v RH (No 4)* [2024] EWFC 114 (24 May 2024, on written submissions, no hearing) in turn characterised my behaviour at the final hearing as "*disruptive*" and my "*litigation misconduct*" as being "*at the extreme end*

of the scale" (paragraph 10(xi)). It contains no reference to my autism, PTSD, or the participation measures that had been ordered for the hearing on which it was founded.

C. THE FINDINGS THAT MUST BE CHECKED AGAINST THE TRANSCRIPT

- 10.** The Family Division judge who refused my earlier application for transcripts at public expense asked what reasonable grounds there were for expending those funds. I respectfully submit that the reasonable grounds are identifiable with precision, not at large. They consist of a set of specific paragraphs in the sealed judgments that make findings of bad character, misconduct, and credibility against me. Each such finding is founded on what the Judge heard and saw during the final hearing. Each such finding can be tested only against the transcript of that hearing.
- 11.** I set out those specific paragraphs, and the reasons the transcript is required in respect of each, in the Schedule of Paragraphs to be Checked Against the Official Transcript, which is annexed to this statement at Annex A. In summary:
 - (a) Paragraph 64 of EWFC 79 contains the finding of bad character — "*obsessed with demonstrating*", "*urgent need to impress*", "*very obvious distress*" — that is the foundation of the £1.2m financial finding and that has been relied upon against me in every downstream proceeding.
 - (b) Paragraph 10(xi) of EWFC 114 contains the finding of "*disruptive behaviour*" and "*litigation misconduct at the extreme end of the scale*" that is the foundation of the costs order against me.
 - (c) Paragraphs 2, 5, 11, 76, and 96 of EWFC 79 contain further findings — on the Imerman context, on participation measures, on narrative framing, on the Oxus perjury, and on the treatment of post-hearing material — each of which is susceptible to testing against the oral record.
- 12.** The transcript application is not, and never was, for "*the entirety of a ten-day hearing*". It is for the specific days on which the oral evidence, submissions, and judicial engagement giving rise to each identified paragraph occurred. The Schedule at Annex A identifies the relevant days against each paragraph.
- 13.** I respectfully submit that these are, by any reasonable measure, reasonable grounds. They are documented, specific, evidence-based, and proportionate. They concern findings of bad character and misconduct against a party whose disability was before the Court and whose disability was entirely absent from the written reasons.

D. THE FAMILY DIVISION REFUSAL AND ITS CIRCULAR REASONING

14. On a date prior to the present application, I applied under form EX107 for transcripts of the February 2024 final hearing. I sought a direction that the transcripts be provided at public expense.
15. The application was refused. The refusal was communicated by Ms Albana Nika, Administrative Officer at HMCTS Family Division, in the following terms:

> *"I am not prepared to direct that this transcript be provided at public expense. The EX107 discloses no reasonable grounds for expending public funds on transcribing the entirety of a ten-day hearing."*
16. With the greatest respect to the Judge of the Family Division who gave that decision, the reasoning is circular. The Judge required me to disclose reasonable grounds for producing transcripts, on pain of refusal to direct their production. The reasonable grounds are in the transcripts. The disparity between oral record and written reasons cannot be demonstrated to any court without the transcripts. To require me to demonstrate it without them, in order to obtain them, is a logical construction that cannot stand as a matter of law.
17. With the Schedule at Annex A now before this Court, the reasoning is additionally deficient in a second respect. My application was not for the entirety of the hearing but for specific days, corresponding to specific findings in the sealed judgments. The reasons the transcript is required are identifiable paragraph by paragraph, with precision. The refusal proceeds as though no such specificity were possible.
18. I raise the refusal not to invite this Court to sit in appeal over it. I raise it because it is part of the factual matrix before this Court, and because the refusal is itself a reviewable administrative decision which, with respect, is open to analysis on Wednesbury grounds and on Article 6 ECHR access-to-justice grounds. This application does not ask the Court to decide those questions now. It asks the Court to issue its own direction, of different legal character, which resolves the issue by a different procedural route.

E. THE APPROPRIATE PROCEDURAL VEHICLE

19. The Second Defendant to these proceedings is His Majesty's Courts and Tribunals Service. HMCTS is the custodian of the audio record of the February 2024 hearing. Authorised transcription providers produce transcripts from that audio record on the direction of a court or, upon payment, on the request of a party.
20. I ask this Court to direct HMCTS, in its capacity as Defendant to the present proceedings, to produce to the Claimant the transcripts of the specified hearing days — at no cost to the Claimant — on the following grounds:
 - (a) The transcripts are the custodian's own record. A direction that a defendant produce its own record is not a direction to expend public funds generically. It is a direction to produce evidence in proceedings brought against it.

(b) The transcripts are the indispensable evidential foundation of the proceedings. The Schedule at Annex A identifies, paragraph by paragraph, the reasonable grounds on which each transcript day is required. Without the transcripts the Court cannot determine these grounds of challenge. With them the Court can determine them on an uncontested documentary basis.

(c) The Claimant is a Litigant in Person and a disabled person within the meaning of the Equality Act 2010 ss.6, 15 and 20. Absent the direction sought, the Claimant's access to the evidential record of the underlying proceedings is effectively foreclosed. That engages Article 6 ECHR (right to a fair hearing) and the common-law right of access to the courts: *R (UNISON) v Lord Chancellor* [2017] UKSC 51.

(d) The direction sought is proportionate. The scope of the production is defined in Annex A and relates to specific paragraphs. It can be narrowed further by the Court as it considers appropriate.

(e) The direction sought is consistent with CPR 39.9, with the inherent jurisdiction of this Court to regulate its own procedure, and with the overriding objective (CPR 1.1).

F. EXPERT EVIDENCE — CPR 35

21. The second limb of this application is for permission to rely on expert evidence under CPR 35.4. CPR 35.1 provides that expert evidence shall be restricted to that which is "*reasonably required to resolve the proceedings.*" I respectfully submit that expert evidence is reasonably required in the present case:

(a) The grounds of challenge include the contention that reasonable participation measures and adjustments required by FPR Part 3A and the Equality Act 2010 were not in place, or were applied inconsistently, during the period February to June 2024.

(b) The practical effect on a neurodivergent party of the presence or absence of such measures is not a matter of ordinary judicial knowledge. It requires expertise in autism, participation, and the adequacy of adjustments made in formal decision-making environments.

(c) The scope of the opinion sought is defined and narrow. It is confined to the period February to June 2024. It is confined to the administrative and procedural record of the underlying proceedings. It does not extend to findings of fact, legal conclusions, liability, advocacy, or policy recommendations.

(d) The expert would be selected from among qualified psychologists, participation specialists, and relevant academics with proven experience of autism and participation in formal institutional environments — as set out in the Revised Letter of Requirements annexed to this application.

22. Costs. The Claimant will bear the costs of the expert in the first instance and reserves all positions on costs recovery. The Claimant is not asking this Court for public funding of the expert.

G. CPR 3.1(7) — VARIATION OR REVOCATION

23. Insofar as any prior order or administrative decision of this Court or of the Family Division has or would have the effect of preventing the Court from giving the directions sought, the Claimant applies under CPR 3.1(7) for variation or revocation of that order or decision. The circumstances relied on as warranting the exercise of the power are:

(a) **Material change of circumstances** since any prior decision — namely, the issue of the present proceedings, the identification of HMCTS as a party-defendant, the Schedule at Annex A which narrows and specifies the reasonable grounds with precision, and the clinical position most recently evidenced by Dr Shoukry's letter of 17 April 2026.

(b) **The essential need for a complete evidential record** — *Tibbles v SIG plc* [2012] EWCA Civ 518 identifies the Court's continuing jurisdiction where the material on which a prior decision was based was itself incomplete.

(c) **The circular nature of the Family Division's refusal** — which, respectfully, is a condition that cannot in law constrain this Court's own jurisdiction to secure the evidence required for its own determination.

H. URGENCY AND PROPORTIONALITY

24. The application is urgent. The findings at Schedule S1 (paragraph 64 of EWFC 79) and Schedule S7 (paragraph 10(xi) of EWFC 114) are being deployed against me, directly or indirectly, in presently-active proceedings:

(a) Chancery Division BL-2024-001217 (*Detach Lending Limited v Zahmoul*) — a response has been filed with the Court this week pursuant to the directions of Master Teverson dated 16 April 2026.

(b) Continuing engagement with Parliament, the Ministry of Justice, and active criminal referrals to the Metropolitan Police Service (Crime Contact Reference CCR-6501-26-0100-000 and Crime Reference Number 01/7340002/26), the National Crime Agency, and the Crown Prosecution Service.

25. The application is proportionate. It concerns a defined set of documentary evidence (transcripts of hearing days identified in Annex A) and a single expert report in a defined scope (February to June 2024 only). The costs of compliance by HMCTS are modest relative to the constitutional importance of the matter: a party's right to have its grounds of challenge determined on the Court's own record, not on her assertion alone.

I. RELIEF SOUGHT

26. I respectfully invite the Court to make the orders set out in the Draft Order accompanying this application.

STATEMENT OF TRUTH

I believe the facts stated in this witness statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Signed: _____

Nadia Zahmoul

Claimant, Litigant in Person

Dated: 24 April 2026

EXHIBITS

Ref	Description
NZ-1	Letter of Dr Omar Shoukry dated 17 April 2026.
NZ-2	Refusal communication from Ms Albana Nika (HMCTS Family Division) refusing direction for transcripts at public expense.
NZ-3	CPR 3.1(7) application sealed on CE-File 12 March 2026.
NZ-4	N244 expedition application sealed on CE-File 14 April 2026.
NZ-5	Email confirmation from Mr Casey Liddle (ACO Case Progression) confirming applications on court file.

ANNEX A — SCHEDULE OF PARAGRAPHS TO BE CHECKED AGAINST THE OFFICIAL TRANSCRIPT

BV20D01752 — Final hearing before Mr Justice MacDonald — 19 to 28 February 2024

This Schedule identifies, by reference to the sealed judgments in the underlying Family Division proceedings, the specific paragraphs of finding that must be tested against the oral record. Each row identifies the judgment and paragraph concerned, the analytical characterisation of the finding, the nature of the finding, the reason the transcript is required, and the hearing day or days sought.

Analytical tags are as used in the Claimant's forensic judgment analysis dated 3 April 2026 and are adopted here for concision: **FABRICATED** — finding for which there is no evidential basis in oral, written, or submissions sources, or which is directly contradicted by contemporaneous documentary evidence. **SUPPRESSED** — material evidence present in the sources is absent from the judgment. **MISCHARACTERISED** — the judgment's version of events contradicts what the sources record. **UNSUPPORTED** — finding or decision taken without adequate reasoning on the record.

Ref	Judgment & Paragraph	Analytical Tag	Nature of the Finding	Why the Transcript is Required	Hearing Day(s)
S1	EWFC 79 (18 April 2024) — paragraph 64	FABRICATED	Adverse character finding based on the Claimant's oral presentation in the witness box: <i>"urgent need to impress that belief on the court"; "very obvious distress"; "obsessed with demonstrating"</i> ; belief <i>"not borne out by the evidence"</i> . This is the foundation of paragraph 64 — the £1.2m financial finding.	The finding is grounded expressly on the Claimant's oral presentation in the witness box and on the asserted intensity of her pursuit of the hidden-assets allegation. The Claimant's case (supported by her attendance notes) is that the question of hidden assets was put to her ONCE in cross-examination (p.27, 21 February 2024, 14:51) and that her distress in the witness box was a documented autism/PTSD response. The transcript is the only record capable of showing (i) how often the subject was raised, (ii) the Claimant's actual responses, and	Days on which the Claimant gave evidence

				(iii) whether her presentation bore the character ascribed to it. The finding cannot be tested without the record on which it purports to rest.	
S2	EWFC 79 — paragraph 2 (Imerman context)	MISCHARACTERISED	Finding that the Claimant conducted "a <i>sustained and systematic campaign</i> " of accessing the other party's private electronic devices, organising material " <i>in carefully categorised files</i> ", implying covert wrongdoing.	The attendance notes (p.42, line 1986) record the Judge stating " <i>I have had the opportunity to read everything in the bundle. I have been involved for a long time. I know a lot about it. You don't need to give me the background. I know.</i> " The Withers LLP correspondence in the bundle (Exhibit E5) establishes that the Claimant's device access was her known, consented administrative role as household administrator. The transcript is required to show what the Judge was told about the Imerman context during the hearing	Opening submissions; days of Imerman evidence

				and against what the characterisation " <i>systematic campaign</i> " stands.	
S3	EWFC 79 — paragraph 5 (Participation measures; Oxus " <i>satisfied not proper</i> ")	SUPPRESSED / UNSUPPORTED	The judgment contains no reference to participation measures being in place during the hearing, no reference to their basis, and no reference to continuation post-trial. On the D11 Oxus application, the judgment states the Judge was " <i>satisfied it would not be proper to take it into account</i> " — giving no reasons.	The attendance notes record participation measures throughout the hearing: monitored questioning by the Judge; frequent breaks; a pupil in the witness box assisting with the bundle; screened (curtain) seating during the other party's evidence. Line 2897 records the Judge himself asking " <i>Did you say Nadia had PTSD?</i> " The D11 raising the Oxus perjury point was filed on 7 March 2024. The transcript is required to demonstrate both the in-hearing record of participation measures (which is absent from the 111-paragraph judgment) and the oral treatment of the D11.	Day 1 (directions / participation measures); subsequent days (application)

S4	EWFC 79 — paragraph 11 (narrative framing)	MISCHARACTERISED	Narrative characterisation of the Claimant's conduct of the proceedings — framing her applications as equivalent to the other party's non-compliance with disclosure.	The bundle contains a documented history of the other party's non-disclosure driving the Claimant's applications. The transcript is required to show how this history was addressed in submissions by leading counsel for the Claimant (Mr Brent Molyneux KC) during the final hearing, and on what evidential basis the equivalence framing in paragraph 11 could properly be sustained.	Opening and closing submissions
S5	EWFC 79 — paragraph 76 (Oxus: sworn value £0 accepted; D11 not determined)	FABRICATED	Finding that the other party's sworn declaration of £0 value for Oxus Acquisition Corp shares was accepted, and that the D11 perjury application was not determined on its merits.	The bundle contains the SEC Proxy Statement (16 January 2024), recording the other party as director with 50,000 Oxus shares, and the NASDAQ announcement (8 February 2024) confirming the business combination closed. The D11 was filed on 7 March 2024 and transmitted via Ms Anita Knight to the Judge. The transcript	Closing submissions; any day on which financial schedules were addressed

				is required to show whether and how the D11 and its supporting documentary evidence were engaged with during the hearing, against a sworn valuation of £0 that was objectively demonstrable as false.	
S6	EWFC 79 — paragraph 96 (post-hearing material " <i>considered</i> ")	UNSUPPORTED	Statement that post-hearing material submitted by the Claimant was " <i>considered</i> ". No reasons given for its effect, or lack of effect, on the outcome. One-word engagement with the D11 and subsequent correspondence raising the Oxus perjury.	Not primarily a transcript question — the transcript does not contain written submissions. However, the transcript is required to establish what oral evidence on these matters was before the Judge and what the Claimant's counsel argued on them during the hearing, against which the one-word " <i>considered</i> " in the judgment can be tested.	Closing submissions
S7	EWFC 114 (24 May 2024) — paragraph 10(xi)	FABRICATED	Adverse costs finding: " <i>the wife's behaviour ... disruptive ... her litigation misconduct is at the extreme end of the scale</i> ". Costs attributed to	The finding that the Claimant's behaviour was " <i>disruptive</i> " and amounted to " <i>litigation misconduct at the extreme end of the scale</i> " is made	All hearing days on which the Claimant was present

			the Claimant on this basis. This paragraph established the costs consequence of paragraph 64 of EWFC 79.	by reference to her conduct at the final hearing. The transcript is the only record on which the characterisation can be tested. If her behaviour was in fact autism/PTSD-related manifestation under adversarial pressure (for which the attendance notes record at least twenty references during the hearing), the costs consequence cannot stand as a matter of law (Equality Act 2010 ss.15, 20, 149).	
--	--	--	---	--	--

The transcript days identified above may be further narrowed by the Court. The Claimant is not seeking transcripts of "*the entirety of the ten-day hearing*" and never has been. The Claimant is seeking the minimum record necessary to test, on the Court's own record, the specific findings on which the adverse judgments are founded.